
NAVIGATING THE NEXUS: WIND POWER DEVELOPMENT OR NABAOY RIVER, AND THE ASPIRATIONS FOR NATIONAL LAND USE ACT

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Introduction

The right to water is recognized as a fundamental human right by the United Nations.¹ It entitles everyone to sufficient, safe, acceptable, physically accessible, and affordable water for personal and domestic use. Similarly, the right to sanitation ensures physical and affordable access to safe, hygienic facilities that respect dignity. This recognition emphasizes that access to clean drinking water and sanitation is essential for sustaining every person's life and well-being such a right is consistent with the principles enshrined in our constitution to which the constitution provides that:

“Section 16. The State shall protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature.”²

This provision is expanded more so in the celebrated case of *Oposa v. Factoran*,³ the supreme court has recognized this right, although not belonging under our Bill of Rights, as no lesser rights for “Such a right belongs to a different category of rights altogether for it concerns nothing less than self-preservation and self-perpetuation — aptly and fittingly stressed by the petitioners — the advancement of which may even be said to predate all governments and constitutions. Such right as the supreme court has so advised need not be written as they exist from the inception of humankind. *“These rights to a balanced and healthful ecology carries with it the correlative duty to refrain from impairing the environment”*”

The NLUA's promise of sustainable development and harmonious land management extends beyond theory—it directly intersects with real-world challenges. One such challenge involves the contentious relationship between a wind power company and the ecologically vital Nabaoy River in Aklan. As we delve into this case, we'll explore how the NLUA's principles can guide us toward a balanced resolution that considers both economic progress and environmental preservation.

¹ Human Rights to Water and Sanitation (n.d) <https://www.unwater.org/water-facts/human-rights-water-and-sanitation>

² CONST. (1987), art. II §16 (Phil.).

³ *Oposa v. Factoran*, G.R. No. 101083, (July 30, 1993) (Phil.).

The Nabaoy Watershed

The Nabaoy Watershed, with an approximate land area of 2,469 hectares, is situated the Municipality of Malay and covers Barangays of Cubay Sur, Motag, Napaan, Pawa, Nabaoy, Malay, and a portion of Tag-osip, Buruanga.⁴ The Nabaoy watershed is the main source of potable water in the community, neighboring barangays, and municipalities as well as the source of water to the famous Island of Boracay. This small watershed is being drained by its river system and tributaries with a common outlet that discharges downstream of Nabaoy River flowing its water out into the Sibuyan Sea.

Based on recent studies,⁵ point to Nabaoy River as a reliable source of food and livelihood not only for the local inhabitants that regularly depend on them, but also for the Municipality of Malay, who thanks to the “unique ecosystem” that allows better conservation of groundwater, this unique characteristic allows the limestone liquefiers to hold on water for at least 16 years from the top before it could be downloaded to its river tributaries, allowing the Nabaoy River maintain a steady stream of water especially during dry season where water is most essential, leading researchers like Raymond Sugang, a senior researcher at the Philippine Nuclear Research Institute (PNRI) of the Department of Science and Technology (DOST), in a Facebook post,⁶ has since warned against any attempts to alter, disrupt or disturb the cracks in this formation, such by simple drillings that create more fracture would result in more water being released, permanently altering the unique ecology in the area.

The Nabaoynon Perspective

Hundreds of Nabaoynon's have called on the Malay local government unit (LGU) to stop the turbine expansion of the Nabas Wind Power Project, a renewable energy project of PetroWind Energy Incorporated (PWEI).

⁴ Señeris, G. T. Nabaoy River Watershed potential impact to flooding using Geographic Information System remote sensing. *AIMS Environmental Science*, 9(3) (2022), <https://www.aimspress.com/article/doi/10.3934/environsci.2022024>

⁵ Maliao, R. J., Cahilig, R. C., Cahilig, R. R., & Jaspe, B. T. Climate Change Awareness and Indigenous Knowledge Systems and Practices (Iksp) of Riverine Fishers in the Nabaoy River, Malay, Aklan, Philippines: Linking Local Social Capital to Socio-Ecological Resilience Amidst the Changing Environment and Climate. Malay, Aklan, Philippines: Linking Local Social Capital to Socio-Ecological Resilience Amidst the Changing Environment and Climate (February 16, 2022), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4034376

⁶ Raymond Jacinto Sugang, “How the Nabaoy River Maintains a Steady Baseflow Year-Round Despite Summer Conditions, Despite Its Rock Composition's Limited Water Storage Capacity” Facebook (February 17, 2024), <https://www.facebook.com/photo?fbId=7120348081376858&set=a.132826973462372>

Villagers and natives of the Nabaoy River have staged multiple protest⁷ condemning the supposed project because of fears that its construction near the said river would nevertheless take a toll on their environment, the protesters has since called on to their local government official to denounce the project noting that completion of such project would inevitably lead to irreparable damage to the Nabaoy River and would not only impact the healthy ecology in the area but the livelihood and socio-economic life of the villagers that rely on them.

The fears of the locals rather ignited by the horror of what has already occurred in the neighboring river of Napaan when during the 1st phase of the Nabas wind project which was launched June 2015, and by July of 2023, furnished by local reports had already shown siltation in the area, that when it rained hard on the August month of that same year, shorelines of several barangays in Malay especially in Argao turned muddy, the clear waters of which has been only comparable to that of Nabaoy, now turned brown from the heavy siltation that caused by the wind farm construction on a neighboring mountain,⁸ the age old practice of catching *patuyaw* (native shrimp) the most decimated, as similar species of freshwater prawns, used to thrive abundantly in Napaan, significantly declining, because of their prone sensitivity to dirty water.⁹ Local leaders in Nabaoy proposed that if the Malay government intends to proceed with the project, it should be relocated away from the rivers and mountains of the Northwest Panay Peninsula Natural Park, the last low-lying forest in Panay.

The Petrowind Perspective

In an article published on their website, PetroEnergy.Co, the company has assured all of its stakeholders that the Nabas 2 wind power project (Phase 2) in Nabas-Malay, Aklan of PetroWind Energy Inc. (PWEI) is fully compliant with all national and local environmental rules, the Department of Environment and Natural Resources - Environmental Management Bureau Region 6 (DENR-EMB 6),¹⁰ it promised to generate clean and more environment-friendly energy that will contribute to the fight against climate change, the company has also promised to continue with its robust implementation of impact mitigation measures, measures recommended by local and international bioengineering experts, such measures, it said were applied in the first phase of the project, which was completed in October 2023.

⁷ Harmé, J. N. Villagers protest planned wind farm expansion project in Aklan. (February 3, 2024). RAPPLER, <https://www.rappler.com/philippines/visayas/villagers-protest-planned-wind-farm-expansion-project-aklan-january-31-2024/>

⁸ Harmé, J. N. Online and offline, this Aklan village fights a wind farm to save their river. (April 30, 2024). RAPPLER, <https://www.rappler.com/newsbreak/in-depth/online-offline-nabaoy-community-struggles-renewable-energy-project/>

⁹ Arnaldo, M. S. F. Threatening the environmental gains of Boracay | Ma. Stella F. Arnaldo. Business Mirror. (March 2, 2024), <https://businessmirror.com.ph/2024/02/23/threatening-the-environmental-gains-of-boracay/>

¹⁰ PetroWind is fully compliant -- DENR-EMB (n.d.), <https://petroenergy.com.ph/#!/newsitem/51>

The company also boasts the compliance of the project by the recent inspections done by environmental agencies confirmed by the project's compliance with Environmental Compliance Certificate (ECC), Special Agreement on Protected Area (SAPA), and Forestland Use Agreement conditions. The compliance, it said, was affirmed in a hearing by the town council of Malay on January 31, 2024.

Petrowind also stressed the project's importance in stabilizing Panay's power supply through sustainable energy sources. It urged stakeholders to rely on accurate information and avoid speculation,¹¹ it also warned that the "Propaganda based on purely ideological grounds without hard scientific and technical basis can result in less investments in Aklan, loss of additional tax revenues for the LGUs, and loss of employment and business opportunities for host communities."

After getting a nod anew from the Sangguniang Bayan of Malay, when the council re-endorsed the project last February 22, 2024, the Petrowind Energy Inc., (PWEI), the company has since confirmed that *gabions*¹² and silt barriers have since been installed, at the same time numerous Barangay Officials, specifically the ones in Argao and Cogon have expressed support for the Phase 2, provided that all mitigating measures will be put in place. Meanwhile, officials of Barangay Cogon have downplayed all possible threats, rationalizing that all development activities have certain effects on the environment, but such effects are temporary.¹³

The Contention and the Present situation

After receiving a citation from the Department of Natural Resources, commending its Nabas-1 Wind farm site, the company has been granted a greenlight on the 14-megawatt second phase of the Nabas wind farm project of Yuchengco-led PetroWind Energy Inc. (PWEI) which will add an additional six (6) wind turbines to the existing eighteen (18) wind turbines of its 36MW Nabas 1, which has started shoring up power supply for the energy-strained Panay island after securing warranted clearances from relevant authorities and entities in the market.¹⁴ At the time of this writing, the Petrowind Phase 2 project has already finished 1.5kms of road connecting

¹¹ Job growth and environmental responsibility: Yuchengcos defend PetroWind's expansion in Aklan (n.d.), <https://bilyonaryo.com/2024/02/21/job-growth-and-environmental-responsibility-yuchengcos-defend-petrowinds-expansion-in-aklan/power/>

¹² a cage, cylinder or box filled with rocks, concrete, or sometimes sand and soil for use in civil engineering, road building, military applications and landscaping.

¹³ PetroWind's Phase 2 Re-endorsed by Malay SB Following; Support from DENR and Barangay Officials (April 16, 2024), <https://petroenergy.com.ph/#!/newsitem/57>

¹⁴ Yuchengco-owned wind farm starts shoring up power supply for Panay. (n.d.). Manila Bulletin, <https://mb.com.ph/2024/4/5/yuchengco-owned-wind-farm-starts-shoring-up-power-supply-for-panay>

the first three (3) turbines and another 800 meters to be finished that will connect the three (3) other turbines, which the renewable energy company has claimed to be done without any effects at all to the water source and belying the claims of detractors as mere misinformation.¹⁵

Despite the claims made by the renewable energy corporation, the Villagers remain undeterred and unconvinced about the benefits of the project, this even if Petrowind has promised program to give back to the community, the villagers in the area continue to reiterate that they were not part of the project's impact assessment, which means that Petrowind may not be held responsible for the damage done to the river if ever there be any consequences,¹⁶ a fact that the Local Government Unit has otherwise advised, stating that Nabaoy River is the direct impact site, because of the close proximity of the project site and the fact that it is the river which will be hit by mud coming from the mountain where the turbines will be affected.

National Land Use Act

As the Philippines grapples with a significant dilemma in effectively managing its land resources due to the absence of comprehensive national legislation governing land use planning. This lack of a unified framework results in conflicting land utilization, environmental decline, and suboptimal allocation of resources. The proposed National Land Use Act (NaLUA) stands as a pivotal remedy, offering the promise of sustainable development and balanced land management.¹⁷ Although the welfare of the Philippines' natural resources and national parks are secured under the now expanded National Integrated Protected Areas System Act (E-NIPAS Act), first passed in 1992, subsequent amendment to the law has added concessions allowing the exploration and establishment of renewable energy projects in natural parks, if the Protected Area Management Board and the secretary of the Philippines' Department of Environment and Natural Resources (DENR) both approve it.¹⁸ Looking into the focuses of each system, with the Expanded National Integrated Protected Areas System Act (ENIPAS) alone, it fails to sustain the balancing economic development with environmental stewardship, when it should have been that the two acts whole have been played a complementary role, where ENIPAS specifically safeguards

¹⁵ Nabas Wind Farm. Facebook (February 19, 2024). <https://www.facebook.com/NabasWindFarm/posts/pfbid.0BmwkMpRiP3dcjWgySwKcmEpJFeJQACVQifA86nVQnFVFbEoAgykqxWqSJqG5ivqml>

¹⁶ Harme, J.N. *supra* note 7, at 3.

¹⁷ PIDS study urges passage of National Land Use Act to address land use conflicts. (February 26, 2024), <https://www.pid.s.gov.ph/details/news/press-releases/pid.s-study-urges-passage-of-national-land-use-act-to-address-land-use-conflicts#:~:text=This%20lack%20of%20a%20unified,development%20and%20harmonious%20land%20management>

¹⁸ Albay, Rick Lars. Tensions heighten as Philippine clean energy projects encroach on conservation areas (May 31, 2024). <https://www.wind-watch.org/news/2024/06/01/tensions-heighten-as-philippine-clean-energy-projects-encroach-on-conservation-areas/>

protected areas¹⁹ the NLUA addresses broader land management challenges, emphasizing sustainable development and harmonious land use nationwide.

For one the National Land Use Act as proposed²⁰ provides a structured approach to land use planning, ensuring that development aligns with environmental protection. By designating land for specific purposes—such as agriculture, industry, or conservation—it minimizes ecological harm. Watersheds, forests, and biodiversity receive due consideration, contributing to disaster resilience. With climate change impacts looming, the NLUA’s systematic approach helps communities adapt and build resilient infrastructure. The Efficient land allocation under the NLUA supports economic development. It encourages investment, infrastructure projects, and urbanization while preventing haphazard growth. By optimizing land utilization, the NLUA fosters sustainable economic value addition. Moreover, it addresses cross-cutting issues that span various sectors, bridging conflicting interests. Whether in rural or urban contexts, planned land use ensures safe settlements, housing, and livelihood opportunities. With the issue at hand, it can only be imagined that the National Land Use Act (NLUA) holds significant potential to address the ongoing dispute concerning the Nabaoy River in Aklan.

To be specific, among the ways it may contribute to resolving this is the Law’s innate ability to establish a comprehensive national land use policy, guiding zoning and allocation of land resources. By delineating specific zones for various purposes (e.g., residential, agricultural, industrial), it can prevent conflicting land uses near the Nabaoy River. Zoning can designate buffer zones along the riverbanks, protecting them from encroachment, pollution, and unsustainable development. This approach ensures that land near the river remains ecologically sensitive and resilient. Secondly, the law emphasizes sustainable land management. It encourages practices that balance economic growth with environmental protection. In the case of the Nabaoy River, the Law could promote eco-friendly land use practices, such as reforestation, wetland conservation, and responsible tourism.

It would discourage activities that harm the river ecosystem, such as unregulated construction or mining. Lastly, as the Law envisions participatory land use planning, such steps may respond strongly to the Local communities, including those affected by the Nabaoy River dispute, can actively engage in decision-making. As the rule imagines stronger involvement of stakeholders, the law itself may foster dialogue, negotiation, and consensus-building. It provides a legal framework for resolving conflicts, ensuring that the river’s interests align with community needs and environmental well-being.

¹⁹ Dela Cruz, Beverly Mae N., National Integrated Protected Areas System (NIPAS) Act and E (expanded) - NIPAS Act of the Philippines (May 20, 2019), <https://www.slid.eshare.net/slid.eshow/national-integrated-protected-areas-system-nipas-act-and-e-expanded-nipas-act-of-the-philippines/146668636>

²⁰ Preservation and protection of our lands is our duty as people, and we are failing miserably. (n.d.), <https://www.greenprint.ph/national-land-use-act>

Conclusion

Striking a delicate balance between development and environmental preservation remains a critical challenge in today's world. As societies progress, the demand for economic growth, infrastructure, and urbanization intensifies. Simultaneously, concerns about ecological degradation, climate change, and the depletion of natural resources escalate. This dilemma prompts us to reflect on the interplay between human progress and the well-being of our planet. In the landmark case of *Oposa v. Factoran*,²¹ the Philippine Supreme Court recognized the doctrine of intergenerational responsibility regarding the environment. The court emphasized that the right to a balanced and healthful ecology is not merely aspirational but also enforceable, even without specific enabling legislation. This ruling underscore the need to harmonize development with environmental stewardship, ensuring a sustainable future for generations to come.

The National Land Use Act (NLUA) offers a holistic approach to land management, potentially mitigating the Nabaoy River conflict by harmonizing development goals with ecological preservation. Its implementation would require collaboration among government agencies, local authorities, and concerned citizens to safeguard this vital water resource.

²¹ *Oposa v. Factoran*, G.R. No. 101083, (July 30, 1993) (Phil.).

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